Reasonable tendency may be made a new statutory standard of guilt. *Waters-Pierce Oil Co.* v. *Texas,* 212 U. S. 86.

A statutory or other definition of crime is not vague for uncertainty "merely because it throws upon men the risk of rightly estimating a matter of degree." There must be an uncertainty in the standard itself, as distinguished from a mere matter of difficulty in applying the standard to the given facts. " 'Drawing the line' is a recurrent difficulty in those fields of the law where differences in degree produce ultimate differences in kind." *Harrison* v. *Schaffner,* 312 U. S. at 583; *Gorin* v. *United States,* 312 U. S. 19.

Differentiation between inherent tendency and clear present danger as applied to constructive contempts is futile.

By leave of Court, briefs of *amici curiae* were filed by *Messrs. Osmond K. Fraenkel* and *A. L. Wirin* on behalf of the American Civil Liberties Union, and its Southern California Branch; and by *Mr. Elisha Hanson* on behalf of the American Newspaper Publishers Association, all urging reversal.

MR. JUSTICE BLACK delivered the opinion of the Court.

These two cases, while growing out of different circumstances and concerning different parties, both relate to the scope of our national constitutional policy safeguarding free speech and a free press. All of the petitioners were adjudged guilty and fined for contempt of court by the Superior Court of Los Angeles County. Their conviction rested upon comments pertaining to pending litigation which were published in newspapers. In the Superior Court, and later in the California Supreme Court, petitioners challenged the state's action as an abridgment, prohibited by the Federal Constitution, of freedom of